

Haji Ibrahim v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 May 2022 · Writ-C No. 14040 of 2022 · **Writ disposed; 6.5 objection liberty; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking quashing of a distribution licensee's demand notice of Rs. 54,09,393 was disposed of without any opinion on merits. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within a time-bound period, with a short stay of coercive recovery.

FACTUAL SUMMARY

Haji Ibrahim challenged a demand notice dated 12 March 2022 issued by the distribution licensee for recovery of Rs. 54,09,393, alleging no default or illegality on his part. He also sought a mandamus restraining coercive recovery and directing decision of his representation dated 18 June 2021. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-relegated-to-6.5-objection

HOLDING

Without expressing any opinion on merits, the writ challenging the demand notice was disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks. If so submitted, the objection shall be decided in accordance with law, preferably within the next four weeks, after reasonable opportunity of hearing. Coercive action on the impugned demand was stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The High Court declined to examine the demand on merits in writ jurisdiction and relegated the consumer to a Para 6.5 objection as the statutory alternative to certiorari. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs. 54,09,393 was left to be decided on a Para 6.5 objection rather than by quashing the demand notice. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 12.03.2022 FOR RS. 54,09,393

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1